

Tenant vs. Landlord: Is This Discrimination?

Randall is a licensed broker with many years of experience in property management. He also acts as "Randy to the Rescue," an advice columnist in the local newspaper. People with housing problems write in with their questions, and he provides appropriate guidance regarding real estate regulations, fair housing, and so forth.

One day, he received two letters that he strongly suspected were about a single situation ... but from opposing points of view. Here is the first letter he received:

Dear Randy,

I am an immigrant from Colombia. I have lived in the same apartment for four years now, but recently there is a new manager and she has been harassing me. For one thing, she informed me that there would be an increase in my rent. Normally the rent increases about one time a year, but this is the second increase this year. I asked a neighbor if he got the same notice, and he said no. Then last week I asked the manager to fix a problem with my kitchen sink, which was not draining.

I should explain that I speak English still with an accent, and I am better at written English than at speaking it. When I asked the manager to fix my sink, she got mad at me and said she couldn't understand me. I tried to explain the problem but then she told me that I should learn to speak English if I am going to stay in this country.

I am afraid to make a problem because my visa has expired. But I have been a good tenant for a long time and I don't understand why the new manager is acting this way. What should I do?

Sincerely,

Afraid

The second letter Randy received that seemed to be about the same situation was this one:

Dear Randy,

I am a property manager for an apartment building. My question is about a tenant that I have who is foreign and doesn't speak English. Recently, she came to me and demanded some modifications to her kitchen. I am not sure exactly what she wanted because she doesn't speak English in spite of living here for several years. I suspect that she is illegal. It frightens me to have someone here that I can't communicate with. I'm also afraid that I am breaking the law by allowing her to stay if she is illegal. Do you think I should evict her?

Regards,

Frightened